

**HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR**

S.B. Criminal Misc(Pet.) No. 749/2021

1. Kanchan Kanwar D/o Babu Lal W/o Setha Ram, Aged About 35 Years, Village Paldi Mangaliya, Mandore, Jodhpur.
2. Babu Lal S/o Shri Mangi Lal, Aged About 56 Years, Ashok Colony, Mandore, Jodhpur.

-----Petitioners

Versus

1. State Of Rajasthan, Through P.p.
2. Gordhan Ram S/o Shri Navla Ram, R/o Paldi Mangaliya, Police Station Mandore, District Jodhpur.

-----Respondents

For Petitioner(s)	:	Mr. Laxman Bishnoi
For Respondent(s)	:	Mr. Gaurav Singh, PP

HON'BLE MR. JUSTICE SANJEEV PRAKASH SHARMA

Order

05/02/2021

Both the counsels appear for the petitioners and the respondent no.2 submit that a compromise has been arrived at between them and the complainant does not want to press the charges levelled in FIR No.34/2016 registered for offences under Sections 198, 199, 200, 420, 467, 468, 471, 472, 120B IPC & 125A of Representation of the People Act, 1951.

The petitioners had participated in an election where the allegation is of having used a forged certificate. However, the petitioners are found to have lost election and the allegations would be therefore academic for the purpose of the election in

pursuance of the investigation in the FIR, the matter is pending in criminal case No.10672/2018 before the Magistrate concerned.

Keeping in view thereto, the petitioners submit that they have filed a compromise before the concerned court which has already been taken on record and no orders were passed. Keeping in view the law laid by the Supreme Court in the case of *State of Madhya Pradesh Vs. Laxmi Narayan* and others, reported in (2019) 5 SCC 688, I am inclined to allow this petition and quash the criminal proceedings arising out of criminal case No.10672/2018.

The criminal misc. petition is accordingly allowed.

All pending applications shall stand disposed of.

(SANJEEV PRAKASH SHARMA),J

NITIN/70



सत्यमेव जयते